

Rishikesh S/O Umesh Shukla And Another vs The State Of Mah.Thr. Pso Ps Hudkeshwar ... on 28 March, 2022

Author: Amit B. Borkar

Bench: V. M. Deshpande, Amit B. Borkar

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APL374.22.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
: NAGPUR BENCH : NAGPUR.

CRIMINAL APPLICATION [APL] NO. 374 OF 2022

APPLICANTS : 1] Rishikesh S/o Umesh Shukla,
Aged about 31 years, Occu. Service,

2] Vandana W/o Umesh Shukla,
Aged about 56 years, Occu. Housewife

Both R/o Shraddha Park, Adarsh Nagar,
Panchawati, Nashik.

VERSUS

NON-APPLICANTS : 1] State of Maharashtra,
through Police Station Officer,
Police Station, Hudkeshwar, Nagpur.

2] Ankita W/o Rishikesh Shukla,
Aged about 27 years, Occu. Housewife,
R/o C/o Smita Patil, Atharv Nagari 2,
Besa Pipla, Plot No. 301, Flora Building,
Nagpur.

Smt. Priyanka Bodhankar, Advocate for the applicants
Shri S. S. Doifode, A. P .P. for the non-applicant /State
Smt. Shiba Thakur, Advocate for non-applicant no.2.

CORAM : V. M. DESHPANDE and
AMIT B. BORKAR, JJ.
DATE : MARCH 28, 2022.

ORAL JUDGMENT (Per : Amit B. Borkar, J.)

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1. Rule. Rule is made returnable forthwith. Heard finally by consent of the parties.

2. By this application under Section 482 of the Code of Criminal Procedure, the applicants are challenging registration of the first information report vide Crime No. 464/2019 filed against them by non-applicant no.2 with non-applicant no.1 - Police Station, Hudkeshwar, Nagpur for the offence punishable under Sections 498-A, 337 read with Section 34 of the Indian Penal Code and consequent Charge-sheet No. 32/2020 and criminal proceeding bearing Regular Criminal Case No. 855/2020 pending before the learned Judicial Magistrate, First Class, Court No.15, Nagpur.

3. The first information report in question came to be registered against the applicants with accusation that the applicants have physically and mentally harassed the non-applicant no.2. The applicants have, therefore, challenged registration of the first information report by filing the present application. The investigating agency after completion of the investigation, filed charge-sheet against the applicants.

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4. We have heard Smt. Priyanka Bodhankar, learned counsel for the applicants, Shri S. S. Doifode, learned Additional Public Prosecutor non-applicant no.1 and Smt. Shiba Thakur, learned counsel for non-applicant no.2. We have also gone through the entire material placed on record in the form of charge-sheet.

5. During pendency of the proceedings before the trial Court, the applicants and non-applicant no.2 have arrived at mutual settlement of the dispute. The applicants have filed consent terms dated 03.02.2022 on record by way of Annexure-3. Clause 10 of the said consent terms records that the applicants and non-applicant no.2 have undertaken to withdraw all the proceedings filed against each other. The said undertaking is accepted.

6. Today, non-applicant no.2 is present before the Court and she stated that she has voluntarily decided to resolve the dispute between her and the applicants. She has stated that a petition under Section 13-B of the Hindu Marriage Act has already been filed before the Family Court, Nagpur for mutual divorce.

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7. We have carefully gone through the allegations made in the first information report along with the material produced in the form of charge-sheet and after going through the same, we are satisfied that the ingredients of the offence alleged against the applicants are not satisfied even if the allegations in the first information report along with the material in the form of charge-sheet is taken on its face value.

8. The Hon'ble Apex Court in Narinder Singh .vs. State of Punjab, reported in 2014 AIR SCW 2065 has observed that the Court cannot decline to quash criminal case in which the first information report incorporates a particular provision, which is a serious offence or an offence against the society. The Court shall make all endeavor whether the first information report indeed discloses the ingredient of such offence and Court can accept the settlement and quash the first information report, if the Court is of the opinion that such offence is unnecessarily incorporated in the first information report.

9. In view of the judgment of the Hon'ble Apex Court in Narinder Singh's case (supra) and in view of amicable resolution of 5 APL374.22.odt the dispute between the applicants and non-applicant no.2, there is no impediment for quashing of the first information report and the charge-sheet against the applicants. We, therefore, pass the following order :

ORDER

1. The Criminal Application is allowed.

2. Rule is made absolute in terms of prayer clause (i), which reads as under :-

"Allow the application thereby quashing and setting aside Final Report /Charge-sheet No. 32/2020 under Section 498-A, 377 read with Section 34 of the Indian Penal Code against all the filed by Police Station, Hudkeshwar, Nagpur and set aside the proceedings arising out of said charge-sheet bearing Regular Criminal Case No. 855/2020 pending before the learned 15 th Civil Judge, Junior Division and Judicial Magistrate, First Class, Nagpur on such terms and conditions as this Hon'ble Court deems fit and proper in the facts and circumstances of the case and in the interest of justice."

3. The application is disposed of.

(AMIT B. BORKAR, J.)

(V.M.DESHPANDE,

Diwale